THE DR. RAJENDRA PRASAD CENTRAL AGRICULTURAL UNIVERSITY ACT, 2016

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THE DR. RAJENDRA PRASAD CENTRAL AGRICULTURAL UNIVERSITY ACT, 2016

ACT NO. 32 OF 2016

[28*th May*, 2016.]

An Act to provide for the establishment and incorporation of a University by conversion of the existing Rajendra Agricultural University, Pusa, Bihar to Dr. Rajendra Prasad Central Agricultural University for the development of agriculture and for the furtherance of the advancement of learning and pursuit of research in agriculture and allied sciences and to declare it to be an institution of national importance.

BE it enacted by Parliament in the Sixty-seventh Year of the Republic of India as follows:—

1. Short title and commencement.—(*1*) This Act may be called the Dr. Rajendra Prasad Central Agricultural University Act, 2016.

(*2*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint.

2. Declaration of Dr. Rajendra Prasad Central Agricultural University as an institution of national importance.— Whereas the objects of the institution known as the Dr. Rajendra Prasad Central Agricultural University are such as to make the institution one of the national importance, it is hereby declared that the institution known as the Dr. Rajendra Prasad Central Agricultural University is an institution of national importance.

3. Definitions.— In this Act, and in all Statutes made hereunder, unless the context otherwise requires, —

(*a*) "Academic Council" means the Academic Council of the University;

(*b*) "academic staff" means such categories of staff as are designated as academic staff by the Ordinances;

(*c*) "agriculture" means the basic and applied sciences of the soil and water management, crop production including production of all garden crops, control of plants, pests and diseases, horticulture including floriculture, animal husbandry including veterinary and dairy science, fisheries, forestry including farm forestry, home-science, agricultural engineering and technology, marketing and processing of agricultural and animal husbandry products, land use and management;

(*d*) "Board" means the Board of Management of the University;

(*e*) "Board of Studies" means the Board of Studies of the University;

(*f*) "Chancellor" means the Chancellor of the University;

(*g*) "college" means a constituent college of the University whether located at the headquarters, campus or elsewhere;

(*h*) "Department" means a Department of Studies of the University;

(*i*) "employee" means any person appointed by the University and includes teachers and other staff of the University;

(*j*) "extension education" means the educational activities concerned with the training of orchardists, farmers and other groups serving agriculture, horticulture, fisheries and improved practices related thereto and the various phases of scientific technology related to agriculture and agricultural production including post-harvest technology and marketing;

(*k*) "Faculty" means Faculty of the University;

(*l*) "Ordinances" means the Ordinances of the University;

1. 7th October, 2016, *vide* notification S.O. 3184 (E), dated 7th October, 2016, *see* Gazette of India, Extraordinary Part II, s. 3 (*ii*).

(*m*) "Regulations" means the Regulations made by any prescribed authority of the University;

(*n*) "Research Advisory Committee" means the Research Advisory Committee of the University;

(*o*) "Statutes" means the Statutes of the University;

(*p*) "student" means a person enrolled in the University for undergoing a course of study for obtaining a degree, diploma or other academic distinction duly instituted;

(*q*) "teachers" means Professors, Associate Professors, Assistant Professors, Teaching Faculty Members and their equivalent appointed for imparting instruction or conducting research or extension education programmes or combination of these in the University, college or any institute maintained by the University and designated as teachers by the Ordinances;

(*r*) "University" means the Dr. Rajendra Prasad Central Agricultural University established under this Act;

(*s*) "Vice-Chancellor" means the Vice-Chancellor of the University; and

(*t*) "Visitor" means the Visitor of the University.

4. Establishment and incorporation of Dr. Rajendra Prasad Central Agricultural University. —(*1*) The University established and incorporated under the Bihar Agricultural University Act, 1987 (Bihar Act 8 of 1988), in so far as it relates to the Rajendra Agricultural University shall be established as a body corporate under this Act by the name of the "Dr. Rajendra Prasad Central Agricultural University".

(*2*) The headquarters of the University shall be at Pusa in the State of Bihar and it may also establish campuses at such other places within its jurisdiction as it may deem fit;

Provided that the University shall integrate the existing campus and other associated facilities of the Rajendra Agricultural University, Pusa and the effective date of take-over shall be as specified in the notification published in the Official Gazette.

(*3*) The first Chancellor, the first Vice-Chancellor and the first members of the Board, the academic Council and all persons who may hereafter become such officers or members, so long as they continue to hold such office or membership are hereby constituted a body corporate by the name of the Dr. Rajendra Prasad Central Agricultural University.

(*4*) The University shall have perpetual succession and a common seal and shall sue and be sued by the said name.

5. Objects of the University.—The objects of the University shall be—

(*a*) to impart education in different branches of agriculture and allied sciences as it may deem fit;

(*b*) to further the advancement of learning and conducting of research in agricultural and allied sciences;

(*c*) to undertake programmes of extension education in the country with particular attention to the State of Bihar;

(*d*) to promote partnership and linkages with national and international educational institutions; and

(*e*) to undertake such other activities as it may, from time to time, determine.

6. Powers of the University.— The University shall have the following powers, namely: —

(*i*) to make provisions for instructions in agriculture and allied sciences;

(*ii*) to make provisions for conduct of research in agriculture and allied branches of learning;

(*iii*) to make provisions for dissemination of the findings of research and technical information through extension programmes;

(*iv*) to grant, subject to such conditions as it may determine, diplomas or certificates to, and confer degrees or other academic distinctions on the basis of examination, evaluation or any other method of testing, on persons, and to withdraw any such diplomas, certificates, degrees or other academic distinction for good and sufficient cause;

(*v*) to confer honorary degrees or other distinctions in the manner prescribed by the Statutes;

(*vi*) to provide lectures and instructions for field workers, village leaders and other persons not enrolled as regular students of the University and to grant certificates to them as may be prescribed by the Statutes;

(*vii*) to co-operate or collaborate or associate with any other University or authority or institution of higher learning in such manner and for such purpose as the University may determine;

(*viii*) to establish and maintain colleges relating to agriculture, horticulture, fisheries, forestry, veterinary and animal science, dairying, home-science and allied sciences, as necessary;

(*ix*) to establish and maintain such campuses, Krishi Vigyan Kendras, special centres, specialised laboratories, libraries, museums or other units for research and institution as are, in its opinion, necessary for the furtherance of its objects;

(*x*) to create teaching, research and extension education posts and to make appointments thereto;

(*xi*) to create administrative, ministerial and other posts and to make appointments thereto;

(*xii*) to institute and award fellowships, scholarships, studentships, medals and prizes;

(*xiii*) to determine standards of admission to the University which may include examination, evaluation or any other method of testing;

(*xiv*) to provide and maintain residential accommodation for students and employees;

(*xv*) to supervise the residences of the students of the University and to make arrangements for promoting their health and general welfare;

(*xvi*) to lay down conditions of service of all categories of employees, including their code of conduct;

(*xvii*) to regulate and enforce discipline among the students and the employees and to take such disciplinary measures in this regard as it may deem necessary;

(*xviii*) to fix, demand and receive such fees and other charges as may be prescribed by the Statutes;

(*xix*) to borrow, with the approval of the Central Government on the security of its property, money for the purpose of the University;

(*xx*) to receive benefactions, donations and gifts and to acquire, hold, manage and dispose of any property, movable or immovable including trust and endowment properties, for its purposes; and

(*xxi*) to do all such other acts and things as may be necessary, incidental or conducive to the attainment of all or any of its objects.

7. Jurisdiction.— (*1*) The jurisdiction and responsibility of the University with respect to teaching, research and programmes of extension education at the University level, in the field of agriculture and allied subjects shall extend to the whole country with special reference to the State of Bihar.

(*2*) All colleges, directorates, research stations, experiment stations and Krishi Vigyan Kendras of the existing Rajendra Agricultural University and other institutions coming under the jurisdiction and authority of the University shall be constituent unit and no other units shall be recognised as affiliated units.

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(*3*) The University may assume responsibility for the training of field extension workers and others and may develop such training centres as may be required in various regions under its jurisdiction.

8. University open to all classes, castes and creed.— The University shall be open to persons of every sex, caste, creed, race or class, and it shall not be lawful for the University to adopt or impose on any person, any test whatsoever of religious belief or profession in order to entitle him to be appointed as a teacher of the University or to hold any other office therein or be admitted as a student in the University or to enjoy or exercise any privilege thereof:

Provided that nothing in this section shall be deemed to prevent the University from making special provisions for the employment or admission of women, persons with disability or of persons belonging to the weaker sections of the society and, in particular, of the Scheduled Castes, the Scheduled Tribes and Other Backward Classes.

9. The Visitor.—(*1*) The President of India shall be the Visitor of the University.

(*2*) Subject to the provisions of sub-sections (*3*) and (*4*), the Visitor shall have the right to cause an inspection to be made, by such person or persons as he may direct, of the University, its buildings, laboratories, libraries, museums, workshops and equipments, and of any institution or college and also of the examination, instruction and other work conducted or done by the University, and to cause an inquiry to be made in like manner in respect of any matter connected with the administration and finances of the University.

(*3*) The Visitor shall, in every case, give notice to the University of his intention to cause, an inspection or inquiry to be made and the University shall, on receipt of such notice, have the right to make, within thirty days from the date of receipt of the notice or such other period as the Visitor may determine, such representations to him as it may consider necessary.

(*4*) After considering the representations, if any, made by the University, the Visitor may cause to be made such inspection or inquiry as is referred to in sub-section (*2*).

(*5*) Where an inspection or inquiry has been caused to be made by the Visitor, the University shall be entitled to appoint a representative who shall have the right to appear in person and to be heard on such inspection or inquiry.

(*6*) The Visitor may address the Vice-Chancellor with reference to the results of such inspection or inquiry together with such views and advice with regard to the action to be taken thereon as the Visitor may be pleased to offer and on receipt of the address made by the Visitor, the Vice-Chancellor shall communicate forthwith to the Board, the results of the inspection or inquiry and the views of the Visitor and the advice tendered by him upon the action to be taken thereon.

(*7*) The Board shall communicate through the Vice-Chancellor to the Visitor such action, if any, as it proposes to take or has been taken by it upon the results of such inspection or inquiry.

(*8*) Where the Board does not, within reasonable time, take action to the satisfaction of the Visitor, the Visitor may, after considering any explanation furnished or representation made by the Board, issue such directions as he may think fit and the Board shall be bound to comply with such directions.

(*9*) Without prejudice to the foregoing provisions of this section, the Visitor may, by an order in writing, annul any proceeding of the University which is not in conformity with this Act, the Statutes or the Ordinances:

Provided that before making any such order, he shall call upon the University to show cause why such an order should not be made and, if any cause is shown within a reasonable time, he shall consider the same.

(*10*) The Visitor shall have such other powers as may be prescribed by the Statutes.

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10. Officers of the University.—The following shall be the officers of the University, namely: —

(*1*) the Chancellor;

(*2*) the Vice-Chancellor;

(*3*) the Deans;

(*4*) the Directors;

(*5*) the Registrar;

(*6*) the Comptroller;

(*7*) the University Librarian; and

(*8*) such other officers as may be prescribed by the Statutes.

11. The Chancellor.—(*1*) The Chancellor shall be appointed by the Visitor in such manner as may be prescribed by the Statutes.

(*2*) The Chancellor shall, by virtue of his office, be the Head of the University.

(*3*) The Chancellor shall, if present, preside at the convocations of the University held for conferring degrees.

12. The Vice-Chancellor.—(*1*) The Vice-Chancellor shall be appointed by the Visitor in such manner as may be prescribed by the Statutes.

(*2*) The Vice-Chancellor shall be the principal executive and academic officer of the University and shall exercise general supervision and control over the affairs of the University and give effect to the decisions of all the authorities of the University.

(*3*) The Vice-Chancellor may, if he is of the opinion that immediate action is necessary on any matter, exercise any power conferred on any authority of the University by or under this Act and shall report to such authority the action taken by him on such matter:

Provided that if the authority concerned is of opinion that such action ought not to have been taken, it may refer the matter to the Visitor whose decision thereon shall be final:

Provided further that any person in the service of the University who is aggrieved by the action taken by the Vice-Chancellor under this sub-section shall have the right to appeal against such action to the Board within three months from the date on which decision on such action is communicated to him and thereupon the Board may confirm, modify or reverse the action taken by the Vice-Chancellor.

(*4*) The Vice-Chancellor, if he is of the opinion that any decision of any authority of the University is beyond the powers of the authority conferred by the provisions of this Act, the Statutes of the Ordinances or that any decision taken is not in the interest of the University, may ask the authority concerned to review its decision within sixty days of such decision and if the authority refuses to review the decision either in whole or in part or no decision is taken by it within the said period of sixty days, the matter shall be referred to the Visitor whose decision thereon shall be final.

(*5*) The Vice-Chancellor shall exercise such other powers and perform such other duties as may be prescribed by the Statutes or the Ordinances.

13. Deans and Director.— Every Dean and every Director shall be appointed in such manner and shall exercise such powers and perform such duties as may be prescribed by the Statutes.

14. The Registrar.— (*1*) The Registrar shall be appointed in such manner as may be prescribed by the Statutes.

(*2*) The Registrar shall have the power to enter into agreements, sign documents and authenticate records on behalf of the University and shall exercise such powers and perform such duties as may be prescribed by the Statutes.

15. The Comptroller.—The Comptroller shall be appointed in such manner and shall exercise such powers and perform such duties as may be prescribed by the Statutes.

16. Other officers.—The manner of appointment and powers and duties of the other officers of the University shall be prescribed by the Statutes.

17. Authorities of the University.—The following shall be the authorities of the University, namely: —

(*1*) the Board;

(*2*) the Academic Council;

(*3*) the Research Council;

(*4*) the Extension Education Council;

(*5*) the Finance Committee;

(*6*) the Faculties and Board of Studies; and

(*7*) such other authorities as may be prescribed by the Statutes.

18. Board of Management. —(*1*) The Board shall be the principal executive body of the University.

(*2*) The constitution of the Board, the term of office of its members and its powers and functions shall be prescribed by the Statutes.

19. The Academic Council. —(*1*) The Academic Council shall be the principal academic body of the University and shall, subject to the provisions of this Act and the Statutes and Ordinances, have the control and general regulation of, and be responsible for the maintenance of standards of learning, education, instruction, evaluation and examination within the University and shall exercise such other powers and perform such other functions as may be conferred or imposed upon it by the Statutes.

(*2*) The constitution of the Academic Council and the term of office of its members shall be prescribed by the Statutes.

20. The Research Council.—The constitution, powers and functions of the Research Council shall be prescribed by the Statutes.

21. The Extension Education Council.—The constitution, powers and functions of the Extension Education Council shall be prescribed by the Statutes.

22. The Finance Committee.—The constitution, powers and functions of the Finance Committee shall be prescribed by the Statutes.

23. Faculties.—The University shall have such Faculties as may be prescribed by the Statutes.

24. The Board of Studies.—The constitution, powers and functions of the Board of Studies shall be prescribed by the Statutes.

25. Other authorities.—The constitution, powers and functions of other authorities of the University referred to in clause (*7*) of section 17 shall be such as may be prescribed by the Statutes

26. Power to make Statutes.— Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely: —

(*a*) the constitution, powers and functions of the authorities of the University, as may be constituted from time to time;

(*b*) the appointment and continuance in office of the members of the authorities, the filling up of vacancies, and all other matters relating to the authorities for which it may be necessary or desirable to provide;

(*c*) the appointment, powers and duties of the officers of the University and their emoluments;

(*d*) the appointment of teachers, academic staff and other employees of the University and their emoluments;

(*e*) the appointment of teachers and academic staff working in any other University or organisation for a specific period for undertaking a joint project;

(*f*) the conditions of service of employees including provision for pension, insurance and provident fund, the manner of termination of service and disciplinary action;

(*g*) the principles governing the seniority of service of employees of the University;

(*h*) the procedure for arbitration in cases of dispute between employees or students and the University;

(*i*) the procedure for appeal to the Board by any employee or student against the action of any officer or authority of the University;

(*j*) the establishment and abolition of departments, centres, colleges and institutions;

(*k*) the conferment of honorary degrees;

(*l*) the withdrawal of degrees, diplomas, certificates and other academic distinctions;

(*m*) the institution of fellowships, scholarships, studentships, medals and prizes;

(*n*) the delegation of powers vested in the authorities or officers of the University;

(*o*) the maintenance of discipline among the employees and students; and

(*p*) all other matters which are to be, or may be, prescribed by the Statutes.

27. Statutes how to be made.— (*1*) The first Statutes are those set out in the Schedule.

(*2*) The Board may from time to time make Statutes or may amend or repeal the Statutes referred to in sub-section (*1*):

Provided that the Board shall not make, amend or repeal any Statute affecting the status, powers or constitution of any authority of the University until such authority has been given an opportunity of expressing an opinion in writing on the proposed changes, and any opinion so expressed shall be considered by the Board.

(*3*) Every Statute or any amendment or repeal of a Statute shall require the assent of the Visitor who may assent thereto or withhold assent therefrom or remit it to the Board for consideration.

(*4*) A Statute or a Statute amending or repealing an existing Statute shall have no validity unless it has been assented to by the Visitor.

(*5*) Notwithstanding anything contained in the foregoing sub-sections, the Visitor may amend or repeal the Statutes referred to in sub-section (*1*) during the period of three years immediately after the commencement of this Act.

(*6*) Notwithstanding anything contained in the foregoing sub-sections, the Visitor may direct the University to make provisions in the Statutes in respect of any matter specified by him and if the Board is unable to implement such direction within sixty days of its receipt, the Visitor may, after considering the reasons, if any, communicated by the Board for its inability to comply with such direction, make or amend the Statutes suitably.

28. Power to make Ordinances.—(*1*) Subject to the provisions of this Act and Statutes, the Ordinances may provide for all or any of the following matters, namely:—

(*a*) the admission of students to the University and their enrolment as such;

(*b*) the courses of study to be laid down for all degrees, diplomas and certificates of the University;

(*c*) the medium of instruction and examination;

(*d*) the award of degrees, diplomas, certificates and other academic distinctions, the qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

(*e*) the fees to be charged for courses of study in the University and for admission to the examinations, degrees, diplomas and certificates of the University;

(*f*) the conditions for award of fellowships, scholarships, studentships, medals and prizes;

(*g*) the conduct of examinations, including the term of office and manner of appointment and duties of examining bodies, examiners and moderators;

(*h*) the conditions of residence of the students;

(*i*) the special arrangements, if any, which may be made for the residence, discipline and teaching of women students and the prescribing of special courses of studies for them;

(*j*) the appointment and emoluments of employees other than those for whom provision has been made in the Statutes;

(*k*) the establishment of special centres, specialised laboratories and other committees;

(*l*) the manner of co-operation and collaboration with other Universities and authorities including learned bodies or associations;

(*m*) the creation, composition and functions of any other body which is considered necessary for improving the academic life of the University;

(*n*) such other terms and conditions of service of teachers and other academic staff as are not prescribed by the Statutes;

(*o*) the management of colleges and institutions established by the University;

(*p*) the setting up of a mechanism for redressal of grievances of employees; and

(*q*) all other matters which by this Act or the Statutes may be provided for by the Ordinances.

(2) The first Ordinances shall be made by the Vice-Chancellor with the previous approval of the Central Government and the Ordinances so made may be amended or repealed at any time by the Board in the manner prescribed by the Statutes.

29. Regulations. —The authorities of the University may make Regulations, consistent with this Act, the Statutes and the Ordinances for the conduct of their own business and that of the Committees appointed by them and not provided for by this Act, the Statutes or the Ordinances in the manner prescribed by the Statutes.

30. Annual report.— (*1*) The annual report of the University shall be prepared under the direction of the Board, which shall include, among other matters, the steps taken by the University towards the fulfilment of its objects and shall be submitted to the Board on or after such date as may be prescribed by the Statutes and the Board shall consider the report in its annual meeting.

(*2*) The Board shall submit the annual report to the Visitor along with its comments, if any.

(*3*) A copy of the annual report as prepared under sub-section (*1*) shall also be submitted to the Central Government, which shall, as soon as may be, cause the same to be laid before both the Houses of Parliament.

31. Annual accounts.—(*1*) The annual accounts of the University shall be prepared under the directions of the Board and shall, once at least every year and at intervals of not more than fifteen months, be audited by the Comptroller and Auditor-General of India or by such persons as he may authorise in this behalf.

(*2*) A copy of the annual accounts together with the audit report thereon shall be submitted to the Board and the Visitor along with the observations of the Board.

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(*3*) Any observations made by the Visitor on the annual accounts shall be brought to the notice of the Board and observations of the Board, if any, shall be submitted to the Visitor.

(*4*) A copy of the annual accounts together with the audit report as submitted to the Visitor, shall also be submitted to the Central Government, which shall, as soon as may be, cause the same to be laid before both the Houses of Parliament.

(*5*) The audited annual accounts after having been laid before both the Houses of Parliament shall be published in the Official Gazette.

32. Conditions of service of employees.— (*1*) Every employee of the University shall be appointed under a written contract which shall be lodged with the University and a copy of which shall be furnished to the employee concerned.

(*2*) Any dispute arising out of the contract between the University and any employee shall, at the request of the employee, be referred to a Tribunal of Arbitration consisting of one member appointed by the Board, one member nominated by the employee concerned and an umpire appointed by the Visitor.

(*3*) The decision of the Tribunal shall be final, and no suit shall lie in any civil court in respect of the matters decided by the Tribunal.

(*4*) Every request made by the employee under sub-section (*2*) shall be deemed to be a submission to arbitration upon the terms of this section within the meaning of the Arbitration and Conciliation Act, 1996 (26 of 1996).

(*5*) The procedure for regulating the work of the Tribunal shall be prescribed by the Statutes.

33. Procedure of appeal and arbitration in disciplinary cases against students.— (*1*) Any student or candidate for an examination whose name has been removed from the rolls of the University by the orders or resolution of the Vice-Chancellor, Discipline Committee or Examination Committee, as the case may be, and who has been debarred from appearing at the examinations of the University for more than one year, may, within ten days of the date of receipt of such orders or copy of such resolution by him, appeal to the Board and the Board may confirm, modify or reverse the decision of the Vice-Chancellor or the Committee, as the case may be.

(*2*) Any dispute arising out of any disciplinary action taken by the University against a student shall, at the request of such student, be referred to a Tribunal of Arbitration and the provisions of sub-sections (*2*), (*3*), (*4*) and (*5*) of section 32 shall, as far as may be, apply to a reference made under this sub-section.

34. Right to appeal.— Every employee or student of the University or of a college or institution maintained by the University shall, notwithstanding anything contained in this Act, have a right to appeal, within such time as may be prescribed by the Statutes, to the Board against the decision of any officer or authority of the University or any college or an institution, as the case may be, and thereupon the Board may confirm, modify or reverse the decision appealed against.

35. Provident and pension funds.— (*1*) The University shall constitute for the benefit of its employees such provident or pension fund or provide such insurance schemes as it may deem fit in such manner and subject to such conditions as may be prescribed by the Statutes.

(*2*) Where such provident fund or pension fund has been so constituted, the Central Government may, if deem fit, declare that the provisions of the Provident Funds Act, 1925 (19 of 1925), shall apply to such fund, as if it were a Government provident fund.

36. Disputes as to constitution of University authorities.—If any question arises as to whether any person has been duly appointed as, or is entitled to be, a member of any authority of the University, the matter shall be referred to the Visitor whose decision thereon shall be final.

37. Constitution of committees.— Where any authority of the University is given power by this Act or the Statutes to appoint Committees, such Committees shall, save as otherwise provided, consist

of the members of the authority concerned and of such persons, if any, as the authority in each case may think fit.

38. Filling of casual vacancies.— All casual vacancies among the members (other than *ex officio* members) of any authority or other body of the University shall be filled, as soon as may be, by the person or body who appoints or co-opts the member whose place has become vacant and the person or body appointed or co-opted to a casual vacancy shall be a member of such authority or body for the residue of the term, for which the person whose place he fills would have been a member.

39. Proceedings of University authorities not invalidated by vacancy.— No act or proceedings of any authority of the University shall be invalid merely by reason of the existence of a vacancy or vacancies among its members.

40. Protection of action taken in good faith.—No suit, prosecution or other legal proceedings shall lie against the Board, Vice-Chancellor, any authority or officer or other employee of the University for anything which is in good faith done or intended to be done in pursuance of any of the provisions of this Act, the Statutes or the Ordinances.

41. Mode of proof of University records.—A copy of any receipt, application, notice, order, proceeding, resolution of any authority or Committee of the University, or other documents in possession of the University, or any entry in any register duly maintained by the University, if verified by the Registrar, shall be received as *prima facie* evidence of such receipt, application, notice, order, proceeding, resolution or documents or the existence of entry in the register and shall be admitted as evidence of the matters and transactions therein where the original thereof would, if produced, have been admissible in evidence, notwithstanding anything contained in the Indian Evidence Act, 1872 (1 of 1872), or in any other law for the time being in force.

42. Effect of establishment of University.—(*1*) On and from the date of commencement of this Act,—

(*a*) any reference to the Rajendra Agricultural University in any contract or other instrument shall be deemed as a reference to the University;

(*b*) all property, movable and immovable, of or belonging to the Rajendra Agricultural University shall vest in the University;

(*c*) all rights and liabilities of the Rajendra Agricultural University shall be transferred to, and be the rights and liabilities of, the University.

(*2*) Every person permanently employed in the Rajendra Agricultural University immediately before the commencement of the Act who meets the requisite qualification and criteria of recruitment in the University shall be provided an opportunity to be employed as such:

Provided that every member of the academic staff and member of Faculty who does not meet the requisite qualification and criteria shall be given an opportunity for two years to upgrade the qualification and to meet the criteria:

Provided further that every other person permanently employed shall be given an opportunity to upgrade the qualification and to meet the criteria, in the manner provided by the Regulations:

Provided also that the tenure, remuneration, terms and conditions, rights and privileges as to pension, leave, gratuity, provident fund and all other matters of every other person permanently employed by the Rajendra Agricultural University shall be determined by the State Government of Bihar.

(*3*) All efforts shall be made by the State Government of Bihar to engage any surplus or temporary academic staff, teacher, member of Faculty or other employee of the Rajendra Agricultural University, by or against whom any dispute is pending.

(*4*) Any dispute or litigation, the cause of action for which has arisen between any member of academic staff, teacher, member of Faculty or other employee and the Rajendra Agricultural University before the commencement of this Act shall be instituted, prosecuted or continued between the academic staff, teacher, member of Faculty or other employee and the Rajendra Agricultural University, as if this Act had not been enacted, and all such cases shall be managed by a special cell to

be constituted by the State Government of Bihar and all expenses relating to the management of such cases including any compensation payable to any person thereof shall be borne by the State Government.

(*5*) Any academic course, programme or scheme as on the date of commencement of the Act shall be continued, till the completion of the course, programme or scheme with such modifications as the University may deem fit.

(*6*) The State Government of Bihar and the University shall bear the proportionate cost of pension and other liabilities of every academic staff, teacher, member of Faculty or other employee, proportionate to the extent of the respective period of service of the person and the State Government shall provide its contribution to the University which may discharge any liability on account of this.

(*7*) Any matter relating to permanent record of students, teachers, academic staff, Faculty and every other employee shall be provided by Regulations.

(*8*) Pension and all other post-retirement benefits including medical benefits of every academic staff, teacher, faculty member and every other employee who has superannuated before the commencement of this Act shall be borne by the State Government of Bihar, the payment of which shall be made through the University and shall be governed by the rules relating thereof made by the State Government of Bihar in this behalf.

(*9*) The retirement age of every teacher, academic staff, Faculty and every other employee of the University shall be governed by any law for the time being in force.

(*10*) Any matter governing the conditions of service relating to the teacher, academic staff, Faculty and every other employee for which no provision has been made in this Act, shall be determined by the corresponding provisions made by the Central Government.

43. Power to remove difficulties.—(*1*) If any difficulty arises in giving effect to the provision of this Act, the Central Government may, by order published in the Official Gazette, make such provisions, not inconsistent with the provisions of this Act, as appear to it to be necessary or expedient for removing the difficulties:

Provided that no such order shall be made under this section after the expiry of three years from the commencement of this Act.

(*2*) Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.

44. Transitional provisions.—Notwithstanding anything contained in this Act, and the Statutes,—

(*a*) the first Chancellor and the first Vice-Chancellor shall be appointed by the Visitor and shall hold office for a term of five years;

(*b*) the first Registrar and the first Comptroller shall be appointed by the Visitor and each of the said officers shall hold office for a term of three years;

(*c*) the first members of the Board shall be nominated by the Visitor and shall hold office for a term of three years;

(*d*) the first members of the Academic Council shall be nominated by the Visitor and shall hold office for a term of three years:

Provided that if any vacancy occurs in the above offices or authorities, the same shall be filled by appointment or nomination, as the case may be, by the Visitor, and the person so appointed or nominated shall hold office for so long as the officer or member in whose place he is appointed or nominated would have held office, if such vacancy had not occurred.

45. Repeal of Bihar Agricultural University Act.—(*1*) The Bihar Agricultural University Act, 1987 (Bihar Act 8 of 1988), in so far as it relates to the Rajendra Agricultural University, Pusa, Bihar is hereby repealed.

(*2*) Notwithstanding the repeal, —

(*a*) all appointments made, orders issued, degrees and other academic distinctions conferred, diplomas and certificates awarded, privileges granted or other things done under the Bihar Agricultural University Act, 1987 (Bihar Act 8 of 1988), in so far as it relates to the Rajendra Agricultural University, Pusa, Bihar, shall be deemed to have been respectively made, issued, conferred, awarded, granted or done under the corresponding provisions of this Act, and, except as otherwise provided by or under this Act or the Statues, continue in force unless and until they are superseded by any order made under this Act or the Statues; and

(*b*) all proceedings of Selection Committees for the appointment or promotions of teachers that took place before the commencement of this Act and all actions of the Governing Body in respect of the recommendations of such Selection Committees where no orders of appointment on the basis thereof were passed before the commencement of this Act, in so far as it relates to Rajendra Agricultural University, shall, notwithstanding that the procedure for selection has been modified by this Act, be deemed to have been valid but further proceeding in connection with such pending selections shall be taken in accordance with the provisions of this Act and be continued from the stage where they stood immediately before such commencement, except if the concerned authorities take, with the approval of the Visitor, a decision to the contrary.

46. Statutes, Ordinances and Regulations to be published in the Official Gazette and to be laid before Parliament.—(*1*) Every Statute, Ordinance or Regulation made under this Act shall be published in the Official Gazette.

(*2*) Every Statute, Ordinance or Regulation made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statutes, Ordinance or Regulation or both Houses agree that the Statute, Ordinance or Regulation should not be made, the Statute, Ordinance or Regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statute, Ordinance or Regulation.

(*3*) The power to make Statutes, Ordinances or Regulations shall include the power to give retrospective effect from a date not earlier than the date of commencement of this Act, to the Statutes, Ordinances or Regulations or any of them but no retrospective effect shall be given to any Statute, Ordinance or Regulation so as to prejudicially affect the interests of any person to whom such Statutes, Ordinances or Regulations may be applicable.

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THE SCHEDULE

(*See* section 27)

THE STATUTES OF THE UNIVERSITY

The Chancellor:

1. (*1*) The Chancellor shall be appointed by the Visitor from a panel of not less than three persons recommended by the Board from amongst persons of eminence in education in general and agricultural sciences in particular:

Provided that if the Visitor does not approve any of the persons so recommended, he may call for fresh recommendations from the Board.

(*2*) The Chancellor shall hold office for a term of five years and shall not be eligible for reappointment:

Provided that notwithstanding the expiry of his term of office, the Chancellor shall continue to hold office until his successor enters upon his office.

The Vice-Chancellor:

2. (*1*) The Vice-Chancellor shall be appointed by the Visitor from a panel of not less than three persons who shall be recommended by a Committee as constituted under clause (*2*).

(*2*) The Committee referred to in clause (*1*) shall consist of the following:—

(*i*) Secretary, Department of Agricultural Research and Education, Government of India who shall be the Chairman;

(*ii*) one nominee of the Visitor as Member, who shall also be the convener;

(*iii*) one nominee of the Central Government.

(*3*) The Vice-Chancellor shall be a whole-time salaried officer of the University.

(*4*) The Vice-Chancellor shall hold office for a term of five years from the date on which he enters upon his office, or until he attains the age of seventy years, whichever is earlier, and he shall be eligible for reappointment for a further term of five years, or until he attains the age of seventy years whichever is earlier:

Provided that notwithstanding the expiry of the said period of five years, he shall continue in office for a period not exceeding one year or until his successor is appointed and enters upon his office.

(*5*) The emoluments and other conditions of service of the Vice-Chancellor shall be as follows: —

(*i*) the Vice-Chancellor shall be paid a monthly salary and allowances other than the house rent allowance, at the rate fixed by the Central Government from time to time and he shall be entitled, without payment of rent, to use a furnished residence throughout his term of office and no charge shall fall on the Vice-Chancellor in respect of the maintenance of such residence;

(*ii*) the Vice-Chancellor shall be entitled to such terminal benefits and allowances as may be fixed by the Board with the approval of the Visitor from time to time:

Provided that where an employee of the University or a college or an institution maintained by it, or any other University or any institution maintained by or affiliated to such other University, is appointed as the Vice-Chancellor, he may be allowed to continue to contribute to any provident fund of which he is a member and the University shall contribute to the account of such person in that provident fund at the same rate at which the person had been contributing immediately before his appointment as the Vice-Chancellor:

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Provided further that where such employee had been a member of any pension scheme, the University shall make the necessary contribution to such scheme;

(*iii*) the Vice-Chancellor shall be entitled to travelling and other allowances as per rate fixed from time to time by the Government of India for the officers equivalent to the rank of Secretary to the Government of India;

(*iv*) the Vice-Chancellor shall be entitled to transfer travelling allowances and other allowances as admissible to officers of the rank of Secretary to the Government of India for joining and after relinquishing the post;

(*v*) the Vice-Chancellor shall be entitled to leave on full pay at the rate of thirty days in a calendar year and the leave shall be credited to his account in advance in two half-yearly instalments of fifteen days each on the first day of January and July every year:

Provided that if the Vice-Chancellor assumes or relinquishes charge of the office of the Vice-Chancellor during the currency of a half year, the leave shall be credited proportionately at the rate of two and-a-half days for each completed month of service;

(*vi*) in addition to the leave referred to in sub-clause (*iv*), the Vice-Chancellor shall also be entitled to half-pay leave at the rate of twenty days for each completed year of service. This half-pay leave may also be availed of as commuted leave on full pay on medical certificate:

Provided that when commuted leave is available, twice the amount of half-pay leave shall be debited against half-pay leave due;

(*vii*) the Vice-Chancellor shall be entitled to Leave Travel Concession and Home Travel Concession as per rules of Government of India;

(*viii*) the Vice-Chancellor shall be entitled to the benefit of leave encashment at the time of laying down the office as per rules of Government of India.

(*6*) If the office of the Vice-Chancellor becomes vacant due to death, resignation or otherwise, or if he is unable to perform his duties due to ill health or any other cause, the senior-most Dean or Director, as the case may be, shall perform the duties of the Vice-Chancellor until a new Vice-Chancellor assumes office or until the Vice-Chancellor attends to the duties of his office, as the case may be.

Powers and duties of the Vice-Chancellor:

3. (*1*) The Vice-Chancellor shall be *ex officio* Chairman of the Board, the Academic Council, the Finance Committee, the Research Council and the Extension Education Council and shall, in the absence of the Chancellor, preside over the Convocations held for conferring degrees.

(*2*) The Vice-Chancellor shall be entitled to be present at, and address, any meeting of any authority of the University, but shall not be entitled to vote thereat unless he is a member of such authority.

(*3*) It shall be the duty of the Vice-Chancellor to see that this Act, the Statutes, the Ordinances and the Regulations are duly observed, and he shall have all the powers necessary to ensure such observance.

(*4*) The Vice-Chancellor shall exercise control over the affairs of the University and shall give effect to the decisions of all the authorities of the University.

(*5*) The Vice-Chancellor shall have all the powers necessary for the proper maintenance of discipline in the University and he may delegate any such powers to such person or persons as he may deem fit.

(*6*) The Vice-Chancellor shall have the power to convene or cause to be convened the meetings of the Board, the Academic Council, the Research Council, the Extension Education Council and the Finance Committee.

The Dean of colleges and Faculties:

4. (*1*) Each Faculty shall have a Dean who shall also be the head of the college concerned.

(*2*) If any Faculty has more than one college, the Vice-Chancellor may nominate one of the Deans as the Dean of the Faculty.

(*3*) The Dean of the college shall be appointed by the Board on the recommendations of the Selection Committee constituted for the purpose as per statute 18 and he shall be a whole-time salaried officer of the University.

(*4*) The Dean shall be entitled to rent free and unfurnished residential accommodation.

(*5*) The Dean shall hold the office for a term of five years and shall be eligible for reappointment:

Provided that a Dean on attaining the age of sixty-five years shall cease to hold office as such.

(*6*) When the office of the Dean is vacant or when the Dean is, by reason of illness, absence or any other cause, unable to perform duties of his office, the duties of the office shall be performed by such persons as the Vice-Chancellor may appoint for the purpose.

(*7*) The Dean shall be responsible to the Vice-Chancellor for the conduct and maintenance of the standards of teaching in the college and Faculty and shall perform such other functions as may be prescribed by the Ordinances.

(*8*) The Dean shall be the *ex officio* Chairman of the Board of Studies of the Faculty, a member of the Academic Council, the Research Council and the Extension Education Council of the University.

The Director of Education:

5. (*1*) The Director of Education shall be appointed by the Board on the recommendations of the Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(*2*) The Director of Education shall be entitled to rent free and unfurnished residential accommodation.

(*3*) The Director of Education shall hold office for a term of five years and shall be eligible for reappointment:

Provided that Director of Education on attaining the age of sixty-five years shall cease to hold office as such.

(*4*) The Director of Education shall be responsible for planning, co-ordination and supervision for all educational programmes in the various Faculties of the University.

The Director of Research:

6. (*1*) The Director of Research shall be appointed by the Board on the recommendations of the Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(*2*) The Director of Research shall be entitled to rent free and unfurnished accommodation.

(*3*) The Director of Research shall hold office for a term of five years and shall be eligible for reappointment:

Provided that the Director of Research on attaining the age of sixty-five years shall cease to hold office as such.

(*4*) The Director of Research shall be responsible for supervision and coordination of all research programmes of the University and shall be responsible to the Vice-Chancellor for performance of his duties.

(*5*) The Director of Research shall be *ex officio* Member-Secretary of the Research Council of the University.

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The Director of Extension Education:

7. (*1*) The Director of Extension Education shall be appointed by the Board on the recommendations of the Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(*2*) The Director of Extension Education shall be entitled to rent free and unfurnished accommodation.

(*3*) The Director of Extension Education shall hold office for a term of five years and shall be eligible for reappointment:

Provided that the Director of Extension Education on attaining the age of sixty-five years shall cease to hold office as such.

(*4*) The Director of Extension Education shall be responsible for supervision and coordination of all Extension Education Programmes in the University and shall be responsible to the Vice-Chancellor for performance of his duties.

(*5*) The Director of Extension Education shall be *ex officio* Member-Secretary of the Extension Education Council of the University.

The Registrar:

8. (*1*) The Registrar shall be appointed by the Board on the recommendations of a duly constituted Selection Committee under Statute 18 and he shall be a whole-time salaried officer of the University.

(*2*) The Registrar shall be responsible to the Vice-Chancellor for performance of his duties.

(*3*) The Registrar shall be appointed for a term of five years and shall be eligible for reappointment.

(*4*) He may also be appointed on deputation for a specified period not exceeding five years.

(*5*) The emoluments and other terms and conditions of service of the Registrar shall be such as may be prescribed by the Ordinances:

Provided that the Registrar shall retire on attaining the age of sixty years.

(*6*) In case of a person appointed on deputation, his tenure, emoluments and other terms of service shall be according to the terms of deputation.

(*7*) When the office of the Registrar is vacant or when the Registrar is, by reason of illness, absence, or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(*8*) (*a*) The Registrar shall have the power to take disciplinary action against such of the employees excluding teachers, as may be specified in the order of the Board and to suspend them pending inquiry, to administer warnings to them or to impose on them the penalty of censure or the withholding of increment:

Provided that no such penalty shall be imposed unless the person concerned has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(*b*) An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in sub-clause (*a*).

(*c*) In a case where the inquiry discloses that a punishment beyond the power of the Registrar is called for, the Registrar shall, upon conclusion of inquiry, make a report to the Vice-Chancellor along with his recommendations:

Provided that an appeal shall lie to the Board against an order of the Vice-Chancellor imposing any penalty.

(*9*) The Registrar shall be the *ex officio* Secretary of the Board and the Academic Council, but shall not be deemed to be a member of any of these authorities.

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(*10*) It shall be the duty of the Registrar —

(*a*) to be the custodian of the records, the common seal and such other property of the University as the Board shall commit to his charge;

(*b*) to issue all notice convening meeting of the Board, the Academic Council and of any Committee appointed by those authorities;

(*c*) to keep the minutes of all the meetings of the Board, the Academic Council and of any committees appointed by those authorities;

(*d*) to conduct the official correspondence of the Board and the Academic Council;

(*e*) to arrange for the examinations of the University in accordance with the manner prescribed by the Ordinances or notifications;

(*f*) to supply to the Visitor, copies of the agenda of the meetings of the authorities of the University as soon as they are issued and the minutes of such meetings;

(*g*) to represent the University in suits or proceedings by or against the University, sign powers of attorney and verify pleadings or depute his representatives for the purpose; and

(*h*) to perform such other duties as may be specified in the Statutes, the Ordinances or the Regulations or as may be required, from time to time, by the Board or the Vice-Chancellor.

The Comptroller:

9. (*1*) The Comptroller shall be appointed by the Board on the recommendations of a duly constituted Selection Committee under Statute 18 and he shall be a whole-time salaried officer of the University.

(*2*) The Comptroller shall be appointed for a term of five years and shall be eligible for reappointment.

(*3*) The Comptroller may also be appointed on deputation for a specified period not exceeding five years.

(*4*) The emoluments and other terms and conditions of service of the Comptroller shall be such as may be prescribed by the Ordinances.

(*5*) In case of a person being appointed as Comptroller on deputation, his tenure, emoluments and other terms of service shall be according to the standard of deputation:

Provided that the Comptroller shall retire on attaining the age of sixty years.

(*6*) When the office of the Comptroller is vacant or when the Comptroller is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(*7*) The Comptroller shall be the *ex officio* Secretary of the Finance Committee, but shall not be deemed to be a member of such Committee.

(*8*) The Comptroller shall—

(*a*) exercise general supervision over the funds of the University and shall advise it as regards its financial policy; and

(*b*) perform such other duties as may be specified in the Statutes, the Ordinances or as may be required, from time to time, by the Board or the Vice-Chancellor.

(*9*) Subject to the control of the Board, the Comptroller shall—

(*a*) hold and manage the property and investments of the University including trust and endowed property;

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(*b*) ensure that the limits fixed by the Board for recurring and non-recurring expenditure for a year are not exceeded and that all moneys are expended on the purpose for which they are granted or allotted;

(*c*) be responsible for the preparation of annual accounts and the budget of the University and for their presentation to the Board;

(*d*) keep a constant watch on the state of the cash and bank balances and on the state of investments;

(*e*) watch the progress of the collection of revenue and advise on the methods of collection employed;

(*f*) ensure that the registers of buildings, land, furniture and equipment are maintained up-to-date and that stock-checking is conducted, of equipment and other consumable materials in all offices, specialised laboratories, colleges and institutions maintained by the University;

(*g*) bring to the notice of the Vice-Chancellor unauthorised expenditure and other financial irregularities and suggest disciplinary action against persons at fault; and

(*h*) call for from any office, laboratory, college or institution maintained by the University and information or returns that he may consider necessary for performance of his duties.

(*10*) Any receipt given by the Comptroller or the person or persons duly authorised in this behalf by the Board for any money payable to the University shall be sufficient discharge for payment of such money.

Heads of Departments:

10. (*1*) Each Department shall have a Head appointed by the Vice-Chancellor who shall be not below the rank of an Associate Professor and whose duties and functions and terms and conditions of appointment shall be prescribed by the Ordinances.

(*2*) The Head of Department shall be responsible to the Dean for teaching, to Director of Research for research, to Director of Extension Education for extension education work.

(*3*) The Dean shall be the administrative controlling officer of the Heads of Departments in college concerned:

Provided that if there is more than one Professor in any Department, the Head of the Department shall be appointed by the Vice-Chancellor from amongst the Professors:

Provided further that in the case of Department where there is only one Professor, the Vice-Chancellor shall have the option, to appoint either the Professor or an Associate Professor as the Head of the Department.

(*4*) It shall be open to a Professor or an Associate Professor to decline the offer of appointment as the Head of the Department.

(*5*) A Professor or an Associate Professor appointed as Head of the Department shall hold office as such for a period of three years and shall be eligible for reappointment.

(*6*) A Head of the Department may resign his office at any time during his tenure of office.

(*7*) A Head of the Department shall perform such functions as may be prescribed by the Ordinances.

(*8*) The Head of the Department shall retire at the age of sixty-five years.

Librarians:

11. (*1*) Every Librarian shall be appointed by the Board on the recommendations of the Selection Committee constituted for the purpose under Statute 18 and he shall be a whole-time salaried officer of the University.

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(*2*) Every Librarian shall exercise such powers and perform such duties as may be assigned to him by the Vice-Chancellor.

Constitution, powers and functions of the Board of Management:

12. (*1*) The Board shall consist of the following members, namely: —

(*i*) the Vice-Chancellor, *ex officio* Chairman;

(*ii*) three Secretaries, from amongst the Secretaries-in-charge of the Departments of Agriculture or Animal Husbandry, Fishery and Horticulture of the State of Bihar to be nominated by the Visitor by rotation;

(*iii*) three eminent scientists to be nominated by the Visitor;

(*iv*) one distinguished person representing Agro-based industries or a manufacturer having a special knowledge in agricultural development to be nominated by the Visitor;

(*v*) the Deputy Director-General (Education) representing the Indian Council of Agricultural Research;

(*vi*) one Dean of college and one Director to be nominated by the Vice-Chancellor on rotational basis;

(*vii*) two persons representing farmers to be nominated by the Vice-Chancellor;

(*viii*) one woman social worker representing woman social organisation to be nominated by the Vice-Chancellor;

(*ix*) an Advisor (Agriculture), NITI Aayog;

(*x*) a distinguished authority on natural resource or environment management to be nominated by the Visitor;

(*xi*) two persons not below the rank of Joint Secretary representing respectively the Departments of Government of India dealing with the Agriculture and Animal Husbandry to be nominated by the concerned Secretary to the Government of India;

(*xii*) nominee of the Secretary representing the Department of Agricultural Research and Education, Government of India;

(*xiii*) the Registrar of the University-Secretary.

(*2*) The term of office of the members of the Board, other than *ex officio* members, shall be three years.

(*3*) The Board shall have the power of management and administration of the revenue and property of the University and the conduct of all administrative affairs of the University not otherwise provided for.

(*4*) Subject to the provisions of this Act, the Statutes and the Ordinances, the Board shall in addition to all other powers vested in it, have the following powers, namely:—

(*i*) to create teaching and academic posts, to determine the number and emoluments of such posts and to define the duties and conditions of service of University staff, subject to the approval of the Indian Council of Agricultural Research;

(*ii*) to appoint such teachers and other academic staff, as may be necessary, and Deans of colleges, Director and Heads of other institutions maintained by the University on the recommendations of the Selection Committee constituted for the purpose and to fill up temporary vacancies therein;

(*iii*) to create administrative, ministerial and other necessary posts and to make appointments thereto in the manner prescribed by the Ordinances;

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(*iv*) to regulate and enforce discipline among employees in accordance with the Statutes and Ordinances;

(*v*) to manage and regulate the finances, accounts, investments, property, business and all other administrative affairs of the University, and for that purpose to appoint such agents as it may think fit;

(*vi*) to fix limits on the total recurring and the total non-recurring expenditure for a year on the recommendations of the Finance Committee;

(*vii*) to invest any money belonging to the University, including any unapplied income, in such stocks, funds shares or securities, from time to time, as it may think fit or in the purchase of immovable property in India, with the like powers of varying such investment from time to time;

(*viii*) to transfer or accept transfers of any movable or immovable property on behalf of the University;

(*ix*) to provide buildings, premises, furniture and apparatus and other means needed for carrying on the work of the University;

(*x*) to enter into, vary, carry out and cancel contracts on behalf of the University;

(*xi*) to entertain, adjudicate upon, and, if thought fit, to redress any grievances of the employees and students of the University;

(*xii*) to fix fees, honorarium, emoluments and travelling allowances of examiners or experts or consultants, advisors and officers on special duty;

(*xiii*) to select a common seal for the University and provide for the custody and use of such seal;

(*xiv*) to make such special arrangements as may be necessary for the residence and discipline of women students;

(*xv*) to delegate any of its powers to the Vice-Chancellor, Deans, Directors, Registrar or Comptroller or such other employee or authority of the University or to a Committee appointed by it as it may deem fit;

(*xvi*) to institute fellowships, scholarships, studentships, medals and prizes;

(*xvii*) to provide for appointment of Visiting Professor, Emeritus Professor, Consultant and Officers on Special Duty and scholars and to determine the terms and conditions of such appointment;

(*xviii*) to exercise such other powers and perform such other duties as may be conferred on it by the Act, or the Statutes.

Quorum for meetings of the Board:

13. Five members of the Board shall form the quorum for a meeting of the Board.

Constitution and powers of the Academic Council:

14. (*1*) The Academic Council shall consist of the following members, namely: —

(*i*) the Vice-Chancellor, *ex officio* Chairman;

(*ii*) all the Deans of the colleges of the University;

(*iii*) the Director of Research of the University;

(*iv*) the Director of Extension Education of the University;

(*v*) the Director of Education;

(*vi*) a Librarian to be nominated by the Vice-Chancellor on rotational basis;

(*vii*) two eminent scientists to be co-opted from outside the University to be nominated by the Vice-Chancellor;

(*viii*) seven Heads of the Departments, at least one from each Faculty to be nominated by the Vice-Chancellor;

(*ix*) the Registrar of the University, *ex officio* Secretary.

(*2*) The term of office of the members of the Academic Council other than *ex officio* members shall be three years.

(*3*) Subject to the Act, the Statutes and the Ordinances, the Academic Council shall, in addition to all other powers vested in it, have the following powers, namely:—

(*a*) to exercise general supervision over the academic policies of the University and to give directions regarding methods of instruction, co-operative teaching among colleges and institutions, evaluation and improvements in academic standards;

(*b*) to bring about inter-college coordination and establish or appoint Committee on academic matters;

(*c*) to consider matters of general academic interest either on its own initiative or on a reference by a college or the Board and to take appropriate action thereon; and

(*d*) to frame such regulations and rules consistent with the Statutes and the Ordinances regarding the academic functioning of the University, discipline, residences, admissions, award of fellowships and studentships, fees, concessions, corporate life and attendance.

Quorum for meetings of the Academic Council:

15. One-third members of the Academic Council shall form the quorum for a meeting of the Academic Council.

Board of Studies:

16. (*1*) Each Faculty shall have a Board of Studies.

(2) The Board of Studies of each Faculty shall be constituted as under: —

(*i*) Dean of Faculty—Chairperson;

(*ii*) Director of Research—Member;

(*iii*) Director of Extension Education—Member;

(*iv*) All Heads of Departments of the Faculty not below the rank of Associate Professor—Member;

(*v*) One representative of the Academic Council not belonging to the particular Faculty to be nominated by the Vice-Chancellor;

(*vi*) Two eminent scientists from agricultural education system not belonging to the University to be nominated by the Vice-Chancellor;

(*vii*) One final year Post-Graduate student with highest Overall Grade Point Average (OGPA) —Member;

(*viii*) Assistant Registrar (Academic) of the Faculty—Member;

(*ix*) Director of Education—Member.

(*3*) The functions of the Board of Studies shall be to recommend to the Academic Council, the course curriculum to be prescribed for various degrees to be offered by the concerned faculty and to make suitable recommendations for the teaching of the prescribed approved course, namely: —

(*a*) courses of studies and appointment of examiners for courses, but excluding research degrees;

(*b*) appointment of supervisors of research; and

(*c*) measures for the improvement of the standard of teaching and research.

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Finance Committee:

17. (*1*) The Finance Committee shall consist of the following members, namely: —

(*i*) the Vice-Chancellor—Chairman;

(*ii*) Financial Advisor, Department of Agricultural Research and Education or his nominee not below the rank of Deputy Secretary;

(*iii*) three persons to be nominated by the Board, out of whom at least one shall be a member of the Board;

(*iv*) three persons to be nominated by the Visitor; and

(*v*) the Comptroller of the University—Member-Secretary.

(*2*) Three members of the Finance Committee shall form the quorum for meeting of the Finance Committee.

(*3*) The members of the Finance Committee other than *ex officio* members, shall hold office for a term of three years.

(*4*) A member of the Finance Committee shall have the right to record a minute of dissent if he does not agree with any decision of the Finance Committee.

(*5*) The Finance Committee shall meet at least twice a year to examine the accounts and to scrutinise proposals for expenditure.

(*6*) Every proposal relating to creation of posts and those items which have not been included in the Budget, shall be examined by the Finance Committee before they are considered by the Board.

(*7*) The annual accounts and the financial estimates of the University prepared by the Comptroller, shall be laid before the Finance Committee for consideration and comments and thereafter submitted to the Board for approval.

(*8*) The Finance Committee shall recommend limits for the total recurring expenditure and the total non-recurring expenditure for the year, based on the income and resources of the University (which, in case of productive works, may include the proceeds of loans).

Selection Committees:

18. (*1*) There shall be a selection Committee for making recommendations to the Board for appointment to the post of teachers, Comptroller, Registrar, Librarians, Deans of colleges, Directors and Heads of other institutions maintained by the University.

(*2*) The Selection Committee for appointment to the posts specified in column 1 of the Table below shall consist of members as specified in the corresponding entries in column 2 of the said Table:

TABLE

1	2	3
A.	Directors/Deans	(*i*) Vice-Chancellor or his nominee—Chairman (*ii*) One nominee of the Visitor—Member (*iii*) Three eminent scientists not below the rank of Vice-Chancellor or equivalent (serving or retired) to be nominated by the Vice-Chancellor from a panel of six names approved by the Board-Member.
B.	Professors/Equivalent	(*i*) Vice Chancellor or his nominee—Chairman (*ii*) One nominee of the Visitor—Member

1	2	3
		(*iii*) Dean of concerned Faculty—Member
		(*iv*) Director of Research or Director of Extension Education or Director of Education to be nominated by the Vice-Chancellor—Member
		(*v*) Three eminent subject specialists not below the rank of Head of Departments (serving or retired) to be nominated by the Vice-Chancellor out of a panel of six names approved by the Board—Member.
C.	Associate Professor/Assistant Professor/Equivalent	(*i*) Vice-Chancellor or his nominee—Chairman
		(*ii*) One nominee of the Visitor—Member
		(*iii*) Dean of concerned Faculty—Member
		(*iv*) Director of Education or Director of Research or Director of Extension Education to be nominated by the Vice-Chancellor—Member
		(*v*) Two eminent teachers or scientists not below the rank of Professor or equivalent (serving or retired) to be nominated by the Vice-Chancellor out of a panel of six names approved by the Board—Members.
D.	Registrar/Comptroller/Librarian	(*i*) Vice-Chancellor or his nominee—Chairman
		(*ii*) One nominee of the Visitor—Member
		(*iii*) One Director/Dean to be nominated by the Vice-Chancellor—Member
		(*iv*) Two experts in the concerned subject to be nominated by the Vice-Chancellor, out of a panel of six names approved by the Board—Members.

(*3*) The Vice-Chancellor, or in his absence, his nominee shall preside at the meeting of the Selection Committee:

Provided that the meetings of the Selection Committee shall be fixed after prior consultation with the nominees of the Visitor:

Provided further that the proceedings of the Selection Committee shall not be valid unless at least two members, not in the service of the University are present in the meeting.

(*4*) The meeting of the Selection Committee shall be convened by the Vice-Chancellor or in his absence by his nominee.

(*5*) The procedure to be followed by the Selection Committee in making recommendations shall be decided by the Committee prior to the interview.

(*6*) If the Board is unable to accept the recommendations made by the Selection Committee, it shall record its reasons and submit the case to the Visitor for final orders.

(*7*) Appointments to temporary posts shall be made in the manner indicated below:—

(*i*) The Vice-Chancellor shall have the authority to appoint a person on *ad hoc* basis for a period not exceeding six months extendable by a further period of six months with the approval of the Board:

Provided that if the Vice-Chancellor is satisfied that in the interest of work it is necessary to fill the vacancy, the appointment may be made on a purely temporary basis by the local Selection Committee referred to in sub-clause (*ii*) for the period not exceeding six months.

(*ii*) If the temporary vacancy is for a period less than one year, an appointment to such vacancy shall be made on the recommendation of the local Selection Committee consisting of the Dean of the college concerned, the Head of the Department and a nominee of the Vice-Chancellor:

Provided that if the same person holds the offices of the Dean and the Head of the Department, the Selection Committee may contain two nominees of the Vice-Chancellor:

Provided further that in case of sudden casual vacancies of teaching posts caused by death or any other reason, the Dean may, in consultation with the Head of the Department concerned, make a temporary appointment for one month and report to the Vice-Chancellor and the Registrar about such appointment.

(*iii*) No teacher appointed temporarily shall, if he is not recommended by the regular Selection Committee for appointment under the Statutes, be continued in service on such temporary employment, unless he is subsequently selected by the local Selection Committee or the regular Selection Committee, for a temporary or permanent appointment, as the case may be.

(*8*) Mode of constitution of the Selection Committee for non-academic staff, not prescribed in the Statutes, shall be prescribed by the Ordinances.

Special mode of appointment:

19. (*1*) Notwithstanding anything contained in Statute 18, the Board may invite a person of high academic distinction and professional attainments to accept a post of Professor or Associate Professor or any other academic post in the University, as the case may be, on such terms and conditions as it deems fit, and on the person agreeing to do so, appoint him to the post.

(*2*) The Board may appoint a teacher or any other academic staff working in any other University or organisation for undertaking a joint project in accordance with the manner laid down in the Ordinances.

Appointment for a fixed tenure:

20. The Board may appoint a person selected in accordance with the procedure laid down in Statute 18 for a fixed tenure on such terms and conditions as it deems fit.

Qualifications of Director, Dean, Professor, etc.:

21. (*1*) Qualifications of Director, Dean, Professor, Associate Professor and Assistant Professor of different Faculties and their equivalents in Research and Extension Education shall be as prescribed by the Ordinances.

(*2*) Qualification of non-academic staff shall be prescribed by the Ordinances.

Committees:

22. (*1*) The authorities of the University specified in section 17 may appoint as many standing or special Committees as it may deem fit, and may appoint to such Committees persons who are not members of such authority.

(*2*) Any such Committee appointed under clause (*1*) may deal with any subject delegated to it subject to confirmation by the authority appointing it.

Terms and conditions of service and code of conduct of the teachers, etc.:

23. (*1*) All the teachers and other academic staff of the University shall, in the absence of any agreement to the contrary, be governed by the terms and conditions of service and code of conduct as are specified in the Statutes, the Ordinances and the Regulations.

(*2*) Every teacher and other staff of the University shall be appointed on a written contract, the term of which shall be prescribed by the Ordinances.

(*3*) A copy of every contract referred to in clause (*2*) shall be deposited with the Registrar.

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Terms and conditions of service and code of conduct of other employees:

24. All the non-academic employees of the University, shall in the absence of any contract to the contrary, be governed by the terms and conditions of service and code of conduct as are specified in the Statutes, the Ordinances and the Regulations as made from time to time.

Seniority list:

25. (*1*) Whenever, in accordance with the Statutes, any person is to hold an office or be a member of an authority of the University by rotation according to seniority, such seniority shall be determined according to the length of continuous service of such person in his grade and, in accordance with such other principles as the Board may, from time to time, prescribe.

(*2*) It shall be the duty of the Registrar to prepare and maintain, in respect of each class of persons to whom the provisions of these Statutes apply, a complete and up-to-date seniority list in accordance with the provisions of clause (*1*).

(*3*) If two or more persons have equal length of continuous service in a particular grade or the relative seniority of any persons is otherwise in doubt, the Registrar may, on his own motion and shall, at the request of any person, submit the matter to the Board whose decision thereon shall be final.

Removal of employees of the University:

26. (*1*) Where there is an allegation of misconduct against a teacher, a member of the academic staff or other employee of the University, the Vice-Chancellor, in case of the teacher or member of the academic staff and the authority competent to appoint (hereinafter referred to as the appointing authority) in the case of other employee, may, by order in writing, place such teacher, member of the academic staff or other employee, as the case may be, under suspension and shall forthwith report to the Board, the circumstances in which the order was made:

Provided that the Board may, if it is of the opinion, that the circumstances of the case do not warrant the suspension of the teacher or a member of the academic staff, revoke such order.

(*2*) Notwithstanding anything contained in the terms of the contract of appointment or of any other terms and conditions of service of the employees, the Board in respect of teacher and other academic staff and the appointing authority, in respect of other employees, shall have the power to remove a teacher or a member of the academic staff, or other employees, as the case may be, on grounds of misconduct.

(*3*) Save as aforesaid, the Board or the appointing authority, as the case may be, shall not be entitled to remove any teacher, member of the academic staff or other employees except for a good cause and after giving three months, notice or on payment of three months salary in lieu thereof.

(*4*) No teacher, member of the academic staff or other employee shall be removed under clause (*2*) or clause (*3*) unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(*5*) The removal of a teacher, member of the academic staff or other employee shall take effect from the date on which the order of removal is made:

Provided that where the teacher, member of the academic staff or other employee is under suspension at the time of his removal, such removal shall take effect from the date on which he was placed under suspension.

(*6*) Notwithstanding anything contained in the foregoing provisions of this Statute, a teacher, member of the academic staff or other employee may resign,—

(*a*) if he is a permanent employee, only after giving three months' notice in writing to the Board or the appointing authority, as the case may be, or by paying three months' salary in lieu thereof;

(*b*) if he is not a permanent employee, only after giving one month's notice in writing to the Board or, the appointing authority, as the case may be, or by paying one month's salary in lieu thereof:

Provided that such resignation shall take effect only on the date from which the resignation is accepted by the Board or the appointing authority, as the case may be.

Honorary degrees:

27. (*1*) The Board may, on the recommendation of the Academic Council and by a resolution passed by a majority of not less than two-thirds of the members present and voting, make proposals to the Visitor for the conferment of honorary degrees:

Provided that in case of emergency, the Board may, on its own motion, make such proposals.

(*2*) The Board may, by a resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw, with the previous sanction of the Visitor, any honorary degree conferred by the University.

Withdrawal of degrees, etc.:

28. The Board may, by a special resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw any degree or academic distinction conferred on, or any certificate or diploma granted to, any person by the University for good and sufficient cause:

Provided that no such resolution shall be passed until a notice in writing has been given to that person calling upon him to show cause within such time as may be specified in the notice why such a resolution should not be passed and until his objections, if any, and any evidence he may produce in support of them, have been considered by the Board.

Maintenance of discipline among students of the University:

29. (*1*) All powers relating to discipline and disciplinary action in relation to students of the University shall vest in the Vice-Chancellor.

(*2*) The Vice-Chancellor may delegate all or any of his powers as he deems proper to such officers as he may specify in this behalf.

(*3*) Without prejudice to the generality of his powers relating to the maintenance of discipline and taking such action, as may seem to him appropriate for the maintenance of discipline, the Vice-Chancellor may, in exercise of his powers, by order, direct that any student or students be expelled, or rusticated, for a specified period, or be not admitted to a course or courses of study in a college, institution or Department of the University for a stated period, or be punished with fine for an amount to be specified in the order, or be debarred from taking an examination or examinations conducted by the University, college, institution or Department for one or more years, or that the results of the student or students concerned in the examination or examinations in which he or they have appeared be cancelled.

(*4*) The Dean of colleges, institutions and Heads of the teaching Departments in the University shall have the authority to exercise all such disciplinary powers over the students in their respective colleges, institutions and teaching Departments in the University as may be necessary for the proper conduct of such colleges, institutions and teaching in the Departments.

(*5*) Without prejudice to the powers of the Vice-Chancellor, the Deans and other persons specified in clause (*4*), detailed rules of disciplines and proper conduct shall be made by the University.

(*6*) The Deans of the colleges, institutions and Heads of the teaching Departments in the University may also make the supplementary rules as they deem necessary for the purposes referred to in clause (*5*).

(*7*) At the time of admission, every student shall be required to sign a declaration to the effect that he submits himself to the disciplinary jurisdiction of the Vice-Chancellor and other authorities of the University.

Maintenance of discipline among students of colleges, etc.:

30. All powers relating to discipline and disciplinary action in relation to the students of the college or an institution maintained by the University, shall vest in the Dean of the College or institution, as the case may be, in accordance with the procedure prescribed by the Ordinances.

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Convocations:

31. Convocations of the University for the conferring of the degrees or for other purposes shall be held in such manner as may be prescribed by the Ordinances.

Acting Chairman:

32. When no provision is made for a Chairman to preside over a meeting of any Committee or when the Chairman so provided for is absent, or the Vice-Chancellor has not in writing made any arrangement, the members shall elect one from among themselves to preside over meeting.

Resignation:

33. Any member, other than an ex officio member of the Board, Academic Council or any other authority of the University or any Committee of such authority may resign by letter addressed to the Registrar and the resignation shall take effect as soon as such letter is received by the Registrar.

Disqualifications:

34. (*1*) A person shall be disqualified for being chosen as, and for being, a member of any of the authorities of the University,—

(*i*) if he is of unsound mind;

(*ii*) if he is an undischarged insolvent;

(*iii*) if he has been convicted by a court of law of an offence involving moral turpitude and sentenced in respect thereof to imprisonment for a period of not less than six months.

(*2*) If any question arises as to whether a person is or has been subjected to any of the disqualifications mentioned in clause (*1*), the question shall be referred to the Visitor and his decision thereon shall be final and no suit or other proceeding shall lie in any civil court against such decision.

Residence condition for membership and office:

35. Notwithstanding anything contained in the Statutes, a person who is not ordinarily resident in India shall not be eligible to be an officer of the University or a member of any authority of the University.

Membership of authorities by virtue of membership of other bodies:

36. Notwithstanding anything contained in the Statutes, a person who holds any post in the University or is a member of any authority of the University in his capacity as a member of a particular authority or as the holder of a particular appointment shall hold such office or membership only for so long as he continues to be a member of that particular authority or the holder of that particular appointment, as the case may be.

Alumni Association:

37. (*1*) There shall be an Alumni Association for the University.

(*2*) The subscription for membership of the Alumni Association shall be prescribed by the Ordinances.

(*3*) No member of the Alumni Association shall be entitled to vote or stand for election unless he has been a member of the said association for at least one year prior to the date of the election and is a degree holder of the University of at least five years standing:

Provided that the condition relating to the completion of one year's membership shall not apply in the case of the first election.

Students' Council:

38. (*1*) There shall be, in each College of the University, a Students' Council for each academic session for the purpose of making recommendations to the authorities of the University with regard to

various activities relating to students welfare, including games, sports, dramatics, debates, cultural activities, etc., and such Council shall consist of: —

(*i*) the Dean of the College—Chairperson;

(*ii*) all Hostel Wardens;

(*iii*) Campus Estate Officer;

(*iv*) five Heads of the Departments to be nominated by the Dean;

(*v*) Hostel Prefects;

(*vi*) one student from each class or year who has secured the Highest Overall Grade Point Average (OGPA) in the previous academic session;

(*vii*) Students Welfare Officer—Member-Secretary.

(*2*) The Students Council shall meet at least once in each semester.

Ordinances how made:

39. (*1*) The first Ordinances made under sub-section (*2*) of section 27 may be amended or repealed at any time by the Board in the manner specified below.

(*2*) No Ordinances in respect of the matters enumerated in section 27, other than those enumerated in clause (*n*) of sub-section (*1*) thereof shall be made by the Board unless a draft of such Ordinance has been proposed by the Academic Council.

(*3*) The Board shall not have power to amend any draft of any Ordinance proposed by the Academic Council under clause (*2*), but may reject the proposal or return the draft to the Academic Council for reconsideration either in whole or in part, together with any amendment which the Board may suggest.

(*4*) Where the Board has rejected or returned the draft of an Ordinance proposed by the Academic Council, the Academic Council may consider the question afresh and in case the original draft is reaffirmed by a majority of not less than two-thirds of the members present and voting and more than half the total member of numbers of the Academic Council, the draft may be sent back to the Board which shall either adopt it or refer it to the Visitor whose decision shall be final.

(*5*) Every Ordinance made by the Board shall come into effect immediately.

(*6*) Every Ordinance made by the Board shall be submitted to the Visitor within two weeks from the date of its adoption.

(*7*) The Visitor shall have the power to direct the University within four weeks of the receipt of the Ordinance to suspend the operation of any such Ordinance and he shall, as soon as possible, inform the Board about his objection to the proposed Ordinance.

(*8*) The Visitor may, after receiving the comments of the University, either withdraw the order suspending the Ordinance, or disallow the Ordinance and his decision shall be final.

Regulations:

40. (*1*) The authorities of the University may make Regulations consistent with the Act, the Statutes and the Ordinances for the following matters, namely:—

(*i*) laying down the procedure to be observed at meetings and the number of members required to form a quorum;

(*ii*) providing for all matters which are required by the Act, the Statutes or the Ordinances to be specified by the Regulations;

(*iii*) providing for all other matters concerning such authority or Committees appointed by them and not provided for by the Act, the Statutes or the Ordinances.

(*2*) Every authority of the University shall make Regulations providing for the giving of notice to the members of such authorities of the dates of meetings and of the business to be considered at meetings and for the keeping of a record of the proceedings of meetings.

(*3*) The Board may direct the amendment in such manner as it may specify of any Regulation made under the Statutes or the annulment of any such Regulation.

Delegation of Powers:

41. Subject to the provisions of the Act and the Statutes, any officer or authority of the University may delegate his or its power to any other officer or authority or person under his or its respective control and subject to the condition that overall responsibility for the exercise of power so delegated shall continue to vest in the officer or authority delegating such power.

Collaboration with other Institution and Organisations:

42. The University shall have the authority to enter into an agreement through a Memorandum of Understanding with any research and/or academic institution of higher learning to conduct collaborative Post-Graduate Research Programme to fulfil the partial requirement for the award of Master's and Ph. D. degrees of the University.

Constitution and Function of Research Council:

43. (*1*) There shall be a Research Council of the University to exercise general supervision over the research policies and programmes of the University in the area of Agriculture and allied disciplines.

(*2*) The Research Council shall consist of the following members, namely:—

(*i*) the Vice-Chancellor—Chairman;

(*ii*) Director of Extension Education—Member;

(*iii*) Director of Education—Member;

(*iv*) all Deans of the colleges of the University—Members;

(*v*) Nominee of the State Governments not below the rank of Director—Members;

(*vi*) all co-ordinators of the Research Teams of the University—Members;

(*vii*) two eminent agricultural scientists to be nominated by the Vice-Chancellor for three years—Members;

(*viii*) Director of Research—Member-Secretary.

(*3*) The Research Council shall meet at least once in a year.

(*4*) One-third members of the Research Council shall form a quorum for the meeting of the Research Council.

(*5*) If a vacancy occurs due to resignation or otherwise the same shall be filled up for the remaining period.

Constitution and function of the Extension Education Council:

44. (*1*) There shall be an Extension Education Council of the University to exercise general supervision over the extension education policies and programmes of the University in the area of Agriculture and allied disciplines.

(*2*) The Extension Education Council shall consist of the following members, namely: —

(*i*) the Vice-Chancellor—Chairman;

(*ii*) Director of Research—Member;

(*iii*) Director of Education—Member;

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(*iv*) all Deans of the colleges of the University—Members;

(*v*) Nominee of the State Governments not below the rank of Director—Members;

(*vi*) two farmers' representatives and one woman social worker to be nominated by the Vice-Chancellor for a term of three years—Members;

(*vii*) two eminent scientists from outside the University to be nominated by the Vice-Chancellor for two years—Members;

(*viii*) Director of Extension Education—Member-Secretary.

(*3*) The Extension Education Council shall meet at least once in a year.

(*4*) One-third members of the Extension Education Council shall form a quorum for the meeting of the Extension Education Council.

Application of the Central Civil Services (Pension) Rules, 1972, etc.:

45. (*1*) All regular employees of the University shall be governed by the provisions of the Central Civil Services (Pension) Rules, 1972, and the General Provident Fund (Central Services) Rules, 1960, in respect of grant of Pension and Gratuity and General Provident Fund.

(*2*) Any amendment made by the Government of India in the Central Civil Services (Pension) Rules, 1972, and the General Provident Fund (Central Services) Rules, 1960, shall also be applicable to employees of the University.

(*3*) In respect of commutation of pension, with any amendments there to the provisions of the Central Civil Services (Commutation of Pension) Rules, 1981, shall apply.

(*4*) The Vice-Chancellor shall be the pension sanctioning authority and the pension authorisation authority.

(*5*) Pension payment shall be centralised and controlled by Comptroller's office.

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